



SPONSOR: Rep. Yearick & Sen. Buckson
Reps. D. Short, Michael Smith, Hilovsky; Sen. Wilson

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 179

AN ACT TO AMEND TITLE 19 OF THE DELAWARE CODE RELATING TO FAMILY AND MEDICAL LEAVE INSURANCE PROGRAM.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend § 3701, Title 19 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows and redesignating accordingly:

§ 3701. Definitions.

For purposes of this chapter:

(7) a. "Employer" means all those who employ employees working anywhere in this State.

~~1. Employers with 10 to 24 employees during the previous 12 months shall be subject to only the parental leave provisions of this chapter. For purposes of this paragraph (7)a.1., "employees" includes those who meet the requirements of a covered individual under paragraphs (3)a. and (3)b. of this section or are reasonably expected to meet the requirements of a covered individual under paragraphs (3)a. and (3)b. of this section during the previous 12 months.~~

2. Employers with 25 or more employees during the previous 12 months shall be subject to all parental, family caregiving, and medical leave provisions of this chapter. For purposes of this paragraph (7)a.2., "employees" includes those who meet the requirements of a covered individual under paragraphs (3)a. and (3)b. of this section or are reasonably expected to meet the requirements of a covered individual under paragraphs (3)a. and (3)b. of this section during the previous 12 months.

3. "Employer" means the employer client company who enters into an agreement with a "professional employer organization" as defined by § 3302(12)(J) of this title. The employer client company shall be treated as the employer for purposes of this chapter.

b. "Employer" does not include any of the following:

1. Anyone who employs less than ~~40~~ 25 employees in this State during the previous 12 months.

c. A spouse, as defined under the FMLA.

SYNOPSIS

This bill changes the definition of employer in the Family and Medical Leave Insurance Program to exclude anyone who employs less than 25 employees in this State.